

assertion by the defendant to support his statement.

Defendant failed to proffer any further corroborating evidence to rebut the presumption of service and show that he was not properly served.

Conclusion

Defendant's Motion for Relief from Default is **DENIED**.

5. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: SEAL PORTIONS OF EXHIBITS IN SUPPORT OF DEFENDANTS'**
MOTION FOR SUMMARY JUDGMENT
FILED BY: SEENO, ALBERT D., JR.
TENTATIVE RULING:

Defendant Albert D. Seeno, Jr. and related entities ("Defendants") filed a Motion to Seal on November 17, 2025 (the "Motion to Seal"). The Motion to Seal was set for hearing on March 30, 2026. The motion is unopposed.

Background

This motion seeks to seal portions of the "Portions of Appendix of Exhibits in Support of Defendants' Motion for Summary Judgment (the "Portions to be Sealed"). The subject pleading was filed on November 17, 2025 with the Portions to be Sealed redacted from the public filing.

The Court has already heard and decided the underlying motion to which the pleading relates. It does not appear that the Court ruled on the Motion to Seal as past of that ruling. See Order entered February 5, 2026. See Minute Order dated February 19, 2026 (regarding February 9, 2026 hearing on Motion for Summary Judgment).

Analysis

Under the California Rules of Court, "[u]nless confidentiality is required by law, court records are presumed to be open." Rule 2.550(c) of the California Rules of Court ("CRC"). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is

not sealed;

(4) The proposed sealing is narrowly tailored; and

(5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The supporting declaration describes that the moving parties only seek to seal certain very specific portions of the subject pleadings. See Declaration of Pat Lundvall, ¶¶3-5.

The unredacted versions of both pleadings were lodged for the Court’s review. The redacted materials are represented to include confidential information that presents a risk of serious personal or other injury to the parties to this action and other third parties if disclosed publicly. *Id.* at ¶3. The Portions to be Sealed appear narrowly tailored.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The Motion to Seal is GRANTED. The Court orders the sealing of Portions to be Sealed that were filed provisionally under seal.
2. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C24-02652

CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. MOHAMMED AZAM

***HEARING ON MOTION IN RE: VACATE THE CONDITIONAL DISMISSAL AND ENTRY OF JUDGMENT
CCP 664.6**

FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Plaintiff American Express National Bank (“Plaintiff”) filed a Motion to Vacate the Conditional Dismissal and for Entry of Judgment on January 13, 2026 (“Motion to Enforce Settlement”). The Motion to Enforce Settlement was set for hearing on March 30, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement filed November 22, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendants MOHAMMED AZAM A/K/A MOHAMMED E AZAM and LOTUS ORGANIC LLC (“Defendants”) in the amount of \$73,707.02, to be paid